

Line 4

Case Name: *Alpha Anderson v. Alta Mesa Cemetery Association, et al.*

Case No.: 24CV442364

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Alpha Anderson (“Plaintiff”) moves under Code of Civil Procedure Section 473(b) and California Rules of Court 3.1385(2) and 3.1202 to reinstate the case on the docket and to set a trial date. Notice of Motion (the “Motion”) at 1:23-2:3 (filed: Jan. 20, 2026).

The Motion came on for hearing on August 28, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Resolution of this Motion is straightforward.

Chronology & Procedural Posture

This action arises from a slip and fall that occurred on or about July 3, 2022, while Plaintiff was lawfully on the Premises as an invitee to Defendants. Plaintiff failed the Complaint on July 2, 2024. California Rule of Court 3.110(b) requires “[t]he Complaint must be served on all named defendants and proofs of serve on those defendant must be filed with the court within 60 days after the filing of the complaint.” C.R.C. 3.110(b). When Plaintiff failed to file a proof of service on Defendants by the 60-day deadline, the Court gave Plaintiff multiple extensions to file the required proof of service, including by setting multiple Order to Show Cause (“OSC”) hearings to dismiss the case for failure to serve on February 7, 2025 and July 2, 2025.

Despite Plaintiff note failing the required proof of service by the second OSC of July 2, 2025, Judge Hayashi at that July 2, 2025 graciously extended for the third time Plaintiff’s time to do so by continuing the OSC to October 29, 2025. When Plaintiff’s counsel appeared at the October 29, 2025 hearing and advised Judge Parrett, who in the interim had been assigned as the Case Manager of this case, that Plaintiff still—after two OSCs and over a year after the Complaint was filed—had neither served nor filed the required proof of service on Defendants, Judge Parrett right then dismissed this case, without prejudice, for Plaintiff’s failure to serve Defendants. Minute Order (filed: Oct. 29, 2025).

Evidently having gotten the attention of Plaintiff’s counsel at the October 29, 2025 hearing, Plaintiff’s counsel the very next day on October 30, 2025 served all Defendants and filed the required Proof of Service the following day on October 31, 2025. Proof of

Service of Summons (filed: Oct. 31, 2025).

After filing an ex parte application on November 4, 2025, which the Court denied on November 6, 2025 because *emergency* ex parte relief was not warranted under C.R.C. 3.1202(c), Plaintiff next filed the present Motion on January 20, 2026, 83 days after the October 29, 2025 dismissal, well within the six-month statutory window for relief under Code of Civil Procedure section 473(b).

Legal Standard on Section 473(b) Motion

California Code of Civil Procedure section 473(b) authorizes the court to relieve a party from a judgment, dismissal, order, or other proceeding taken against that party through mistake, inadvertence, surprise, or excusable neglect. C.C.P. § 473(b). The application must be made within a reasonable time and, in no case, exceeding six months after the judgment, dismissal, order, or proceeding was taken. *Id.* California law strongly favors resolution of cases on their merits rather than by default or dismissal. *Elston v. City of Turlock* (1985) 38 Cal. 3d 227, 233.

Analysis of the Section 473(b) Motion

I. Plaintiff meets all statutory requirements for relief under Section 473(b) here.

After carefully reviewing the moving papers and the record, and in the broad exercise of its discretion, the Court finds:

- (1) Plaintiff's motion was filed on January 20, 2026, within six months of the October 29, 2025 dismissal, satisfying the timeliness requirement of section 473(b); and
- (2) Plaintiff's counsel Irving Pedroza has submitted a declaration establishing the grounds for relief by attesting that the October 29, 2025 dismissal was his fault because it resulted from his mistake, inadvertence, surprise, or neglect.

A. Attorney Fault Is Established

With commendable candor, Plaintiff's counsel Pedroza declares under oath that: "The dismissal of this action resulted solely from attorney inadvertence on my part." Decl. of Irving Pedroza ¶ 7 (filed: Jan. 20, 2026). Specifically, he explains that "we were not able to ensure that service of the complaint was completed within the time ordered by the Court following the Court's continuance of the OSC" *Id.* And that: "This failure was not intentional or gamesmanship, but rather an oversight attributable entirely to my office and me" *Id.*

Moreover, counsel admits that "[a]fter the Court continued the OSC on July 7, 2025, my office reasonably believed that service would not be contested during that period. While settlement discussions were ongoing, service was not completed prior to

the October 29, 2025 hearing date. We mistakenly failed to calendar a hard internal deadline to complete service notwithstanding the continued OSC, which resulted in the Court dismissing the action without prejudice.” Decl. of Irving Pedroza ¶ 5. The Court accepts that that is exactly what happened here.

Those declarations by attorney Pedroza establish that this dismissal for failure to serve resulted from attorney mistake, inadvertence, and excusable neglect. The failure to complete service while pursuing settlement discussions, combined with the calendaring oversight, constitutes attorney fault warranting relief under section 473(b).

B. Plaintiff sought this Section 473(b) relief promptly.

Attorney Pedroza further declares that: “Upon learning of the dismissal, I immediately began preparing this instant motion for relief” Decl. of Irving Pedroza ¶ 6 and that “No delay occurred once the dismissal was discovered.” *Id.* The Court accepts that as true.

Moreover, Plaintiff’s counsel acted quite promptly to remedy his mistake and prosecute this action by, after Judge Parrett got his attention at the October 29, 2025 hearing, finally serving all Defendants in this matter the next day on October 30, 2025, and by filing the Proof of Service of Summons on all Defendants the day after that on October 31, 2025.

This prompt action demonstrates that the failure to serve was not willful neglect but rather the product of attorney oversight during settlement negotiations.

C. Defendants will suffer no unfair prejudice if this relief is granted.

Attorney Pedroza asserts that “Defendants will suffer no prejudice if relief is granted,” Decl. of Irving Pedroza ¶ 9, because “[t]he dismissal was without prejudice, no trial date has been set, no discovery cutoff has passed, and Defendants have not changed their position or incurred any detriment in reliance on the dismissal.” *Id.* The Court agrees. The dismissal without prejudice occurred on October 29, 2025, and Defendants were served the very next day. The brief period between dismissal and service, combined with the absence of any reliance by Defendants on the dismissal, supports the conclusion that Defendants will not be prejudiced by reinstatement.

D. California Law favors resolution of this case on its merits.

California law strongly favors resolution of cases on their merits. *Elston* (1985) 38 Cal. 3d 227 at 233, *supra*.

The failure to serve Defendants in this case resulted from counsel's oversight during settlement discussions, not from any lack of diligence by Plaintiff. Defendants were served promptly after the dismissal. Under these circumstances, the strong public policy favoring adjudication on the merits weighs heavily in favor of granting relief.

Defendants do not argue otherwise. Indeed, Defendants have not opposed the Motion at all, which the Court views as Defendants conceding the Motion in its entirety. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; California Practice Guide: Civil Procedure Before Trial ¶ 9:105.10, Ch. 9 at pp. 94-95 (failure to file opposition papers to motion is treated “as an admission that the motion is meritorious”) (Weil & Brown, The Rutter Group, 2025 Ed.); *see also* Rule of Court 8.54(c): “A failure to oppose a motion may be deemed a consent to the granting of the motion.” CRC Rule 8.54(c).³

Conclusion & Order

For the foregoing reasons, Plaintiff’s Motion for relief under Code of Civil Procedure section 473(b) is **GRANTED**. Specifically, it is **ORDERED** that:

1. The October 29, 2025 dismissal of this action is **SET ASIDE**.
2. This case is **REINSTATED** on the Court's active docket.
3. Defendants will now answer or otherwise respond to the Complaint as permitted, and within the time period permitted, by the Code of Civil Procedure.
4. An **Initial Case Management Conference**, where counsel for all parties must appear, is now set **for October 15, 2026 at 2:00 PM in Department 16**.⁴
5. All parties shall comply with the Case Management Conference requirements set forth in the California Rules of Court and the Santa Clara County Superior Court local rules.
6. Plaintiff will give Notice to all Defendants of this Order within 5 days of today.

SO ORDERED.

Date: August 28, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

³ To be sure, as the action was dismissed on October 29, 2025, and as they have not yet appeared in this action, Defendants were not *required* to oppose this Motion. But the facts remains that they have not opposed it, which the Court can and does view as Defendants conceding this Motion.

⁴ While Plaintiff also asked the Court in its Motion to “set a trial date” (Motion at 2:2-3), the Court will not do so quite yet but rather will allow discovery to proceed in an orderly and normal course first.

Line 5

Case Name: *Santa Clara Valley Water District v. Mildred Peck, et al.*

Case No.: 25CV482807

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Santa Clara Valley Water District (“Valley Water” or “Plaintiff”) moves under Code of Civil Procedure Section 1255.410 *et seq.* for prejudgment possession of the real property, identified as Assessor’s Parcel Number (“APN”) 472-12-001, located within the City of San Jose (the “Property”), that is the subject of this eminent domain proceeding. Notice of Motion (the “Motion”) at 2:4-13 (filed: March 4, 2026).

This Motion is made on the grounds that Plaintiff, as an entity with the power of eminent domain, is authorized to take possession of real property for the purposes set forth in the Complaint in this action, namely, for the construction and operation of the Coyote Creek Flood Protection Project (the “Project”), which consists of improvements to reduce the risk of flooding along approximately nine miles of Coyote Creek, including flood walls and headwalls to redirect flood flows, berms to contain or redirect flow flows, ground-level barriers to contain floodwaters, storm drain backflow prevention devices to prevent backflows from Coyote Creek to stress during high water flows, as well as vegetation removal for accession during construction. *Id.* at 22:14-21.

The Motion came on for hearing on August 28, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

As an initial matter, Plaintiff’s accompanying Request for Judicial Notice in support of this Motion is **GRANTED** in all respects. Accordingly, under Evidence Code Sections 450, 452(d) and (h), and 453, the Court takes Judicial Notice of:

1. Plaintiff’s Complaint in Eminent Domain, filed on December 2, 2025, in the Santa Clara County Superior Court in this matter, including all exhibits thereto; and
2. Plaintiff’s Notice of Deposit of Probable Just Compensation, filed on December 26, 2025 in the Santa Clara County Superior Court in this matter, including all exhibits thereto.

Next, after reviewing all moving papers and the record, and in the broad exercise of its discretion, the Court finds that Plaintiff has satisfied all the requirements for and is entitled to prejudgment possession of the Property now. Specifically, the Court finds that:

1. Plaintiff is entitled to take the Property by eminent domain;